

JOINT VENTURE AGREEMENT (WHOLESALE DEAL)

This Joint Venture Agreement (the "Agreement") is entered into as of _____ by and between JV Partner 1: _____, _____ ("Partner 1"), and JV Partner 2: _____, _____ ("Partner 2") (each a "Party").

1. Purpose; Single Transaction.

The Parties agree to jointly pursue the assignment or disposition of that certain purchase contract dated _____ between _____ and _____ for the property at _____ (the "Deal"). This Agreement applies to the Deal only and creates no partnership, agency, or ongoing venture between the Parties.

2. Roles & Contributions.

Partner 1 shall: _____. Partner 2 shall: _____.

3. Fee Split.

The net assignment fee or net proceeds from the Deal (gross fee minus agreed transaction costs listed in Exhibit A) shall be split: _____% to Partner 1 and _____% to Partner 2.

4. Payment.

The Parties shall instruct the closing/settlement agent _____ in writing to disburse each Party's share directly at closing. Neither Party shall receive or hold the other's share.

5. Non-Circumvention.

For _____ months following the Effective Date, neither Party shall contact, contract with, or close with the other Party's disclosed contacts (the seller, the buyer, or either's principals) on the Property except through this Agreement.

6. Confidentiality.

Deal terms, contact information, and fee amounts shall be kept confidential except as required to close the Deal or by law.

7. Expenses.

Except as listed in Exhibit A, each Party bears its own costs. Neither Party may obligate the other without written consent.

8. No Deal, No Fee.

If the Deal does not close for any reason, neither Party owes the other any amount, and this Agreement terminates upon the earlier of Deal termination or _____.

9. Representations.

Each Party represents it has the right to perform its role herein, and that no real estate license is required for its activities hereunder or, if required, it holds such license. [Consult counsel — licensing requirements for disposition activities vary by state.]

10. Governing Law; Entire Agreement; Counterparts; Electronic Signatures.

This Agreement shall be governed by and construed under the laws of the State of _____ . This Agreement (with attached exhibits) constitutes the entire agreement of the parties and supersedes all prior discussions. No amendment or waiver is effective unless in writing signed by both parties. This Agreement may be executed in counterparts and delivered electronically; all counterparts together constitute one instrument.

IN WITNESS WHEREOF:

_____ / Date: _____

_____ / Date: _____

Exhibit A – Agreed Transaction Costs (if any)